

APPOINTED

The Executor's Ops Manual

First 90 Days After Someone Dies

The legal, financial, and practical playbook for the person everyone is counting on.

Includes: 72-Hour Triage Protocol • Decision Trees • Notification Master List • Digital Asset Protocol • Executor CYA Templates

HOW TO USE THIS MANUAL

You didn't ask for this role. You got it anyway.

As executor, you are now the legally responsible party for settling someone's entire life — their debts, assets, property, digital accounts, and relationships with the IRS. Most people walk into this with zero preparation and zero experience. That's not a character flaw. It's just how it works.

This manual is organized as an ops system, not a reading guide. Move through it in order during your first 90 days. The sections are sequenced by urgency. The decision trees tell you which path applies to your situation. The checklists are fillable. The callout boxes flag legal exposure.

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Your timeline from death through estate closure

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Attorney, CPA, agent — what they do vs. what you can do

IMPORTANT: THIS IS NOT LEGAL ADVICE

This manual is an organizational and educational tool. Every estate is different. State laws on probate timelines, small estate thresholds, and community property vary significantly. Use this as your operational framework — but consult a licensed estate attorney in your state for any matter involving significant assets, disputes, or legal uncertainty.

Texas-specific notes are included where relevant and flagged with [TX].

SECTION 01

The First 72 Hours

The first three days are the highest-leverage window in the entire process. Actions taken — or missed — here set the trajectory for everything that follows. This section runs in priority order. Do not skip steps. Do not distribute assets. Do not make financial decisions.

STOP BEFORE YOU DO ANYTHING

Do NOT distribute any assets, cash, or personal property — to anyone — until you have legal standing (Letters Testamentary from probate court). Distributing early can make you personally liable to creditors.

Do NOT pay any bills from the estate until you have a full inventory of debts.

Do NOT close any accounts. Freeze or hold, do not close.

Priority 1: Secure the Physical Estate

- Change locks on the deceased's residence immediately — even if family members have keys
- Collect all mail being delivered to the address; forward it to your address or hold
- Secure vehicles — photograph condition, confirm location, do not transfer ownership yet
- Inventory obvious valuables (jewelry, cash, guns, art) with photos and a written list — date/timestamp everything
- If property will be vacant, notify the homeowner's insurance company (vacant home riders may be required)
- [TX] Texas requires firearms to be inventoried as estate personal property; consult probate attorney before transfer

Priority 2: Locate the Will

- Check: home safe, filing cabinet, desk, safe deposit box at the bank, or with their estate attorney
- If no will found: the estate is intestate — see the Decision Trees section for your path
- Do NOT destroy, alter, or 'sit on' a will — this can constitute fraud and expose you to criminal liability
- Make certified copies once located; protect the original

No Will Found?

Intestate succession means state law — not the deceased's wishes — determines who gets what. In Texas, community property rules apply and the distribution formula differs based on whether the deceased had a spouse, children, or both. Go directly to the Decision Trees section and follow the 'No Will' path. You will likely need a probate attorney.

Priority 3: Death Certificates

- Order a minimum of 10 certified death certificates from the funeral home or county vital records office
- Cost is typically \$10–\$25 per copy — do not be stingy; running out later costs far more in time
- Every financial institution, government agency, and insurance company requires an original
- Order 15 if the estate includes real estate, a business, or accounts across multiple institutions

CERTIFIED COPIES NEEDED FOR:

Each bank/brokerage account | Each life insurance policy | Social Security Administration | Employer/HR department | DMV (vehicle transfers) | Probate court filing | IRS (estate tax return if applicable) | Each real estate transaction | Medicare/Medicaid

Priority 4: Immediate Notifications

- Social Security Administration — call 1-800-772-1213 within days; any SSA payment received after date of death must be returned
- Employer or former employer — notify HR; triggers pension/retirement/group life insurance claims
- Primary care physician — triggers medical records access for estate purposes
- Bank(s) where direct deposits land — place holds, prevent automatic payments draining the account
- Life insurance companies — most policies require notification within 30–90 days to initiate claims

Priority 5: Lock Down Digital Accounts

- Change email account passwords immediately — email is the master key to every other account
- Log into password manager if accessible — photograph/record all credentials stored there
- Freeze or memorialize social media accounts before someone else gains unauthorized access
- Identify cryptocurrency wallets, exchange accounts, and digital investment platforms — access must be established before you can claim these assets
- Document every online subscription that will auto-charge the estate's credit card or bank account

72-Hour Completion Checklist

■ Locks changed on residence	■ Mail secured / forwarded
■ Vehicles located and secured	■ Physical inventory started (photos)
■ Homeowner's insurance notified	■ Will located (or intestate path confirmed)
■ 10+ death certificates ordered	■ SSA notified
■ Employer / HR notified	■ Bank(s) notified / holds placed
■ Life insurance companies notified	■ Email accounts secured
■ Password manager accessed	■ Social media accounts frozen
■ Digital subscriptions identified	■ No assets distributed

SECTION 02

The 90-Day Phase Map

Estate administration doesn't happen all at once. It has distinct phases with different priorities. Most executor mistakes happen when someone tries to skip a phase or complete Phase 4 tasks before Phase 2 is finished. Follow the sequence.

PHASE	TIMEFRAME	PRIMARY FOCUS
TRIAGE	Days 1–7	Secure property, notify critical parties, order death certificates, locate will, lock down digital accounts
LEGAL STANDING	Days 8–30	File will with probate court, receive Letters Testamentary, open estate bank account, notify creditors
ASSET CONTROL	Days 31–60	Complete full asset inventory, freeze/appraise accounts, respond to creditor claims, file any required tax notices
RESOLUTION	Days 61–90	Pay validated debts and taxes, prepare distribution plan, seek court approval if required, distribute to beneficiaries

Phase 1: Triage (Days 1–7)

Covered in Section 1. By end of Day 7 you should have: physical estate secured, will located, death certificates ordered, critical notifications made, digital accounts locked down.

Phase 2: Legal Standing (Days 8–30)

This phase is about establishing your legal authority to act. Without it, you cannot touch estate assets.

- File the original will with probate court in the county where the deceased lived — most courts require this within 30 days of death
- Petition for Letters Testamentary (or Letters of Administration if no will) — this document is your legal license to manage the estate
- Open a dedicated estate bank account — all estate income and expenses flow through this account only
- Never mix estate funds with your personal accounts — this is a fiduciary violation and can result in personal liability
- Publish creditor notice in a local newspaper if required by your state — [TX] Texas requires this for formal probate
- Notify all known creditors directly in writing
- File Notice of Appointment with the IRS if estate exceeds federal threshold (currently \$13.61M)

SMALL ESTATE SHORTCUT [TX]

Texas allows a Small Estate Affidavit for estates valued under \$75,000 (excluding homestead) with no will. This bypasses formal probate entirely. If the estate qualifies, this is a significant time and cost savings. Consult a Texas probate attorney to confirm eligibility — the affidavit must be filed with the court.

Phase 3: Asset Control (Days 31–60)

You now have legal standing. This phase is about building a complete, accurate picture of what the estate owns and owes.

- Complete written inventory of all assets with estimated fair market values
- Collect account statements for every financial account as of date of death
- Obtain professional appraisals for real estate, business interests, and significant personal property
- Review all creditor claims received — you have the right to accept or reject each one
- Identify all taxes owed: final individual income tax return (Form 1040), estate income tax (Form 1041 if applicable)
- Do not pay informal creditor demands without verifying legitimacy — some are scams targeting estates
- Continue tracking all estate expenses (funeral costs, attorney fees, appraisal fees) — these are deductible

Phase 4: Resolution (Days 61–90)

The final phase. Do not rush here — premature distribution creates personal liability.

- Pay all validated debts in order of priority: secured debts first, then taxes, then unsecured creditors
- File final income tax return for the deceased (due April 15 of following year, or with extension)
- File estate income tax return (Form 1041) if estate generated income during administration
- Obtain receipts and releases from all paid creditors
- Prepare formal accounting of all estate transactions for beneficiaries
- Distribute remaining assets to beneficiaries per the will (or intestate law)
- File final accounting with probate court if required
- Close the estate bank account and file for formal discharge

BEFORE YOU DISTRIBUTE ANYTHING — HARD STOP

All debts paid? All taxes filed and paid? All creditor claim periods expired? Letters Testamentary still valid? Court approval obtained if required? Written accounting prepared and shared with beneficiaries? If ANY of these are 'no' — do not distribute. The money can come back out of your pocket if you distribute early.

SECTION 03

Decision Trees

These decision frameworks handle the four highest-stakes forks an executor faces. Work through each one that applies to your situation. The wrong answer at any of these points can cost the estate thousands or expose you to personal liability.

Decision Tree A: Do You Need Probate?

Probate is the court-supervised process for settling an estate. It is required in many situations but not all.

? Did the deceased have assets titled in their name alone (no joint owner, no named beneficiary)?

YES → Probate is likely required. File the will with probate court. See Phase 2 of the 90-Day Map.

NO → Assets with named beneficiaries (life insurance, 401k, IRA, TOD accounts) transfer directly — no probate needed for those assets. Evaluate remaining assets.

? Is the total probate estate value under your state's small estate threshold?

YES → [TX] Under \$75,000 (excl. homestead, no will): Small Estate Affidavit may apply. Consult a TX probate attorney to confirm and file.

NO → Formal probate is required. File in the county where the deceased resided. Timeline: typically 9–18 months in Texas.

? Did the deceased have a living trust that holds their assets?

YES → Assets in the trust transfer per trust terms — no probate for those assets. You may still need probate for assets outside the trust (pour-over will).

NO → No trust means court process governs distribution of all probate assets.

Decision Tree B: Should You Hire an Estate Attorney?

? Is the estate value over \$500,000 OR does it include real estate, a business, or out-of-state assets?

YES → Hire an estate attorney. The complexity and liability exposure justify the cost. Attorney fees are paid from the estate, not your pocket.

NO → Consider DIY or limited-scope attorney help. Texas allows independent administration for simpler estates.

? Are there disputes between beneficiaries, creditors, or family members about the will or assets?

YES → Hire an estate litigation attorney immediately. Do not attempt to mediate contested estates without legal representation.

NO → If estate is uncontested and relatively simple, you may be able to self-administer with court forms and guidance.

? Is the estate potentially insolvent (debts may exceed assets)?

YES → Stop. Hire an estate attorney before making any payments. Paying the wrong creditors first when an estate is insolvent can make you personally liable for the difference.

NO → Solvent estate: pay debts per priority order as outlined in Phase 4.

Decision Tree C: Can You Distribute Assets Yet?

? Do you have valid Letters Testamentary or Letters of Administration from the probate court?

YES → Continue to next question.

NO → STOP. You have no legal authority to distribute anything. File for probate first.

? Have all creditor claim periods expired AND all known debts and taxes been paid?

YES → Continue to next question.

NO → STOP. Do not distribute until creditor period has run and all debts are resolved. You are personally liable for premature distributions.

? Have you prepared and shared a formal accounting of all estate transactions with beneficiaries?

YES → You may proceed with distribution. Document every transfer with receipts and signed releases.

NO → Prepare the accounting first. Transparency prevents the disputes that lead to lawsuits.

Decision Tree D: Is There No Will? (Intestate Succession)

When someone dies without a valid will in Texas, state law determines distribution.

? Was the deceased married at time of death?

YES → Community property goes to surviving spouse. Separate property may be split between spouse and children depending on circumstances. Consult a TX probate attorney.

NO → Estate passes to children in equal shares. If no children, then to parents. If no parents, then to siblings. Court will appoint an administrator.

INTESTATE IN TEXAS

Texas is a community property state. Community property (acquired during marriage) goes entirely to the surviving spouse. Separate property (owned before marriage or inherited) follows a different formula. Blended families and children from prior relationships complicate this significantly — consult a Texas probate attorney.

SECTION 04

Notification Master List

Every entity below must be notified of the death. The order matters — some notifications trigger deadlines, stop payments, or unlock claims. Work through this list systematically. Use the estate communication log in Section 6 to document every contact.

Government & Benefits — Notify First

PARTY	WHAT TO SEND	DEADLINE	DONE
Social Security Admin	Death certificate. Call 1-800-772-1213. Any payment received AFTER date of death must be returned immediately.	Within 3 days	■
Medicare / Medicaid	Death certificate + Medicare card. Stops premium billing. Initiates any final claims.	Within 30 days	■
Veterans Affairs (if applicable)	Death certificate + DD-214. Triggers burial benefits, survivor benefits, and pension claims.	Within 30 days	■
IRS	File Form 56 (Notice of Fiduciary Relationship). Required if you will file tax returns for the estate.	With first return	■
State Tax Authority [TX]	Texas has no state income tax; however notify TX Comptroller if estate has business interests.	Within 90 days	■
Passport / State Dept	Mail original passport + death certificate + Form DS-64 to cancel passport and prevent identity theft.	Within 60 days	■

Financial Institutions

PARTY	WHAT TO SEND	DEADLINE	DONE
Each bank / credit union	Death certificate + Letters Testamentary. Freeze individual accounts. Transfer joint accounts. Open estate account.	Within 30 days	■

Brokerage / investment accounts	Death certificate + Letters Testamentary + account numbers. Initiate transfer to estate account or direct to beneficiaries if TOD designated.	Within 30 days	■
Retirement accounts (IRA, 401k)	Death certificate + beneficiary designation forms. Assets transfer directly to named beneficiaries — not through probate.	Within 60 days	■
Life insurance companies	Death certificate + policy number + claim forms. Each company has its own claim packet.	As soon as possible	■
Mortgage servicer	Death certificate + Letters Testamentary. Continue payments to avoid default. Triggers assumption or payoff discussion.	Within 30 days	■
Credit card companies (each)	Death certificate. Closes account, stops interest accrual, initiates estate claim process.	Within 30 days	■
Auto loans	Death certificate + Letters Testamentary. Continue payments or notify of intent to sell/return vehicle.	Within 30 days	■

Credit Bureaus — Critical for Identity Protection

PARTY	WHAT TO SEND	DEADLINE	DONE
Equifax	Mail: death certificate + cover letter requesting deceased flag. Address: Equifax Information Services, LLC, P.O. Box 105139, Atlanta, GA 30348	Within 30 days	■
TransUnion	Mail: death certificate + cover letter. Address: TransUnion LLC, P.O. Box 2000, Chester, PA 19016	Within 30 days	■
Experian	Mail: death certificate + cover letter. Address: Experian, P.O. Box 9701, Allen, TX 75013	Within 30 days	■

WHY ALL THREE CREDIT BUREAUS MATTER

Deceased individuals are prime targets for identity theft. A 'deceased indicator' on all three bureau files prevents new credit from being opened in the decedent's name. This step protects the estate and the beneficiaries.

Employer, Insurance & Property

PARTY	WHAT TO SEND	DEADLINE	DONE
Employer / HR department	Death certificate. Triggers final paycheck, accrued PTO payout, group life insurance claim, pension/401k notification, and COBRA rights for dependents.	Within 7 days	■
Health insurance provider	Death certificate. Terminates coverage (or initiates COBRA for surviving dependents). Settles any pending claims.	Within 30 days	■
Homeowner's / renter's insurance	Death certificate. Update named insured. Notify if property will be vacant — vacancy may void policy.	Within 14 days	■
Auto insurance	Death certificate. Remove deceased as driver. Adjust coverage or cancel if vehicle is being sold.	Within 30 days	■
Life insurance (all policies)	Death certificate + claim form per company. Check if deceased had policies through employer, credit cards, auto loans — these are often forgotten.	Within 30 days	■
Utility companies	Death certificate. Transfer or cancel service. Watch for deposits that may be returnable.	Within 60 days	■
HOA (if applicable)	Death certificate + Letters Testamentary. Stops assessments against deceased, initiates transfer to estate.	Within 30 days	■

SECTION 05

Digital Asset Protocol

Digital assets are the fastest-growing and most consistently mishandled component of modern estate administration. They do not automatically transfer. Many platforms will lock or delete accounts without proper executor action. Some assets — like cryptocurrency — can be permanently lost if access credentials are not secured immediately.

ACT WITHIN THE FIRST WEEK

Several platform policies automatically purge accounts after a period of inactivity. Cryptocurrency held on exchanges can be swept by the exchange in some scenarios. Cloud storage with unpaid subscriptions will be deleted. Do not wait to address digital assets.

Email Accounts — The Master Key

- Email is the login recovery method for almost every other account — secure it first
- Google/Gmail: request account access via Google's Deceased User process or use the Inactive Account Manager if pre-authorized
- Apple Mail / iCloud: requires Apple's next-of-kin process with death certificate and legal documentation
- Do NOT attempt to 'hack' or bypass authentication — document your process and work through official channels
- Once access is established: search for financial statements, insurance policies, subscription bills, and login credentials

Cryptocurrency & Digital Investments

- Search for hardware wallets (Ledger, Trezor), seed phrase backups (12 or 24 words on paper/metal), and exchange account records
- If crypto is held on an exchange (Coinbase, Kraken, Binance): submit death certificate + Letters Testamentary to initiate transfer
- If crypto is in a self-custody wallet: the seed phrase is the asset — without it, the funds are unrecoverable; search thoroughly
- NFTs, tokenized assets, and DeFi positions require specialist assistance — do not transact without understanding the tax implications
- Airline miles, credit card points, and hotel rewards: contact each program — some transfer to beneficiaries, others expire at death

CRYPTO WITH NO SEED PHRASE

If the deceased held self-custody cryptocurrency and no seed phrase can be located, those funds may be permanently inaccessible. Exhaust all searches (fireproof safes, safety deposit boxes, encrypted files, cloud backups) before concluding the funds are lost. A blockchain forensics firm can sometimes assist in identifying wallet addresses and balances, but recovery without keys is generally not possible.

Social Media & Online Profiles

PLATFORM	PROCESS	RECOMMENDED ACTION
Facebook / Instagram	Memorialize or remove. Submit via facebook.com/help/deceased . Memorialized accounts preserve content but prevent login. Removal requires proof of authority.	Memorialize unless family requests removal
X / Twitter	Deactivation request via privacy request form. Account deleted after 30-day deactivation. Download archive first if content has value.	Download archive first
LinkedIn	Removal request via linkedin.com/help . Submit death certificate. Profile is permanently deleted.	Remove — prevents posthumous scam contact
Google / YouTube	Next-of-kin request at myaccount.google.com/deceased . Can request content download or account deletion.	Download first if channel has subscribers or content
TikTok	Account removal request with death certificate via support form.	Remove
Apple ID / iCloud	Next-of-kin process required. Submit death certificate + legal docs via apple.com/support .	Required to access Photos, iCloud Drive

Subscriptions — Stop the Bleeding

Auto-renewing subscriptions will continue charging estate accounts until cancelled. Each charge is an estate asset being depleted.

- Review the last 3 months of bank and credit card statements for recurring charges
- Cancel: Netflix, Spotify, Hulu, Disney+, Apple One, Amazon Prime — call or use account portal
- Cancel: software subscriptions (Adobe, Microsoft 365, Dropbox, cloud storage)
- Cancel: news, magazine, and streaming subscriptions
- Cancel: gym memberships and wellness apps
- Cancel: domain names and web hosting (back up any websites or content first)
- Cancel: insurance policies that are no longer needed (but not life insurance — that's a claim)
- Amazon: do not cancel the account yet — check for digital purchases (books, music) that may have transferable value

Password Management

- If the deceased used a password manager (1Password, LastPass, Bitwarden, Dashlane): access it first — it's the master key to all other accounts
- Bitwarden and 1Password have emergency access features that can be pre-authorized — if not set up, submit death certificate and legal documentation
- If no password manager: check browser saved passwords (Chrome, Safari, Firefox — all store passwords locally)
- Check for a physical password notebook, sticky notes, or a document called 'passwords' on the desktop or cloud drive
- Document every credential you recover in the estate's secure records — do not store in your personal accounts

SECTION 06

Executor CYA Templates

Documentation is your liability shield. Every decision you make as executor should be logged. Every communication with a beneficiary should be recorded. Every expense should have a receipt and a rationale. Transparency prevents 90% of beneficiary disputes before they become lawsuits.

THE PAPER TRAIL PRINCIPLE

Executors are held to a fiduciary standard. If you are ever challenged in court, your documentation is your defense. A well-kept decision log shows you acted in good faith, followed the will, and treated all beneficiaries equally. The time cost of keeping records is negligible compared to the cost of defending yourself without them.

Template A: Estate Decision Log

Log every material decision as executor. Use one row per decision. Keep this document in a secure location with the estate file.

Template B: Beneficiary Communication Log

Every material communication with a beneficiary about the estate should be logged here. Include phone calls, emails, in-person conversations, and formal notices.

Template C: Estate Expense Ledger

All estate expenses must be documented and recoverable from the estate before distribution. Expenses paid from your personal funds are reimbursable with receipts. Executor fees are taxable income.

		Estate / Personal	\$	☐ Yes ☐ No	
		Estate / Personal	\$	☐ Yes ☐ No	
		Estate / Personal	\$	☐ Yes ☐ No	
		Estate / Personal	\$	☐ Yes ☐ No	
		Estate / Personal	\$	☐ Yes ☐ No	

		Estate / Personal	\$	☐ Yes ☐ No	
		Estate / Personal	\$	☐ Yes ☐ No	
		Estate / Personal	\$	☐ Yes ☐ No	

EXECUTOR COMPENSATION NOTE

As executor, you are entitled to 'reasonable compensation' from the estate (in Texas, typically 5% of the estate's gross value). However, executor fees are taxable income. If you are also a beneficiary, it may be more tax-efficient to waive the fee and simply receive your inheritance (which is not taxable income). Consult a CPA before deciding whether to take executor compensation.

SECTION 07

Working With Professionals

Professional fees are paid from the estate — not from your pocket. The right professional at the right time is leverage, not cost. The wrong professional, or no professional when you needed one, creates costs that dwarf any fee savings.

Estate Attorney — When to Hire, What They Do

HIRE AN ESTATE ATTORNEY IF:	YOU CAN LIKELY SELF-ADMINISTER IF:
• Estate value exceeds \$500,000 • Real estate is involved • Business interests exist • Assets in multiple states • Beneficiaries are disputing • Estate appears insolvent • Minor children are beneficiaries • No will (intestate, complex family structure)	• Estate is under small estate threshold • All assets have named beneficiaries or joint owners • No real property in probate • All beneficiaries agree and cooperate • Simple, single-state estate • You have time to research your state's court forms

Attorney fees are typically 3–5% of the gross estate value or billed hourly (\$200–\$500/hr). Both are allowable estate expenses deductible from the estate.

- Ask for a fee agreement in writing before engaging
- Ask specifically: are they charging hourly or a percentage, and what is included vs. billed separately?
- [TX] Texas allows 'independent administration' — a court-supervised but attorney-light process for simpler estates

CPA / Tax Professional

A good estate CPA is not optional for estates with significant assets. The tax work alone justifies the cost.

- Final individual income tax return (Form 1040) — due April 15 of the year following death
- Estate income tax return (Form 1041) — required if estate generates over \$600 in income during administration
- Estate tax return (Form 706) — required if gross estate exceeds \$13.61 million (federal); Texas has no state estate tax
- Stepped-up cost basis calculations — this affects capital gains tax for beneficiaries on inherited assets
- Qualified disclaimer strategies — a CPA can identify tax savings by adjusting how assets flow to beneficiaries

Questions to Ask Before Hiring Any Professional

- Have you handled estates of similar size and complexity?
- What is your fee structure, and what is included in the base engagement?

- Will you personally handle my matter or delegate it to a junior associate?
- What is your estimated timeline for completion?
- What do you need from me to get started?
- How do you prefer to communicate — email, phone, portal?

The Leverage Principle: What You Can Do Yourself

Attorney and CPA time is expensive. The more organized you are, the less time you pay for.

- Bring a complete asset inventory with valuations — this alone saves hours of attorney/CPA time
- Bring all death certificates, the original will, and Letters Testamentary to every professional meeting
- Keep your decision log, communication log, and expense ledger updated — your attorney will want this
- Handle all notifications yourself (Section 4) — attorneys routinely bill for letters you can write
- Use this manual to understand the process so you can ask targeted questions, not general ones

You were appointed to this role because someone trusted you. This manual gives you the operational framework to honor that trust — completely, legally, and without losing yourself in the process.
